

3.	25CV2710	L.A. COMMERCIAL GROUP, INC., A CORPORATION VS. HANGTOWN BODY SHOP LLC, A LIMITED LIABILITY COMPANY ET AL
MOTION TO ENFORCE SETTLEMENT AGREEMENT		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 11, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 14, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Plaintiff, L.A. Commercial Group, Inc., a Corporation, dba Continental Commercial Group ("Plaintiff"), seeks to enforce the settlement agreement pursuant to CCP § 664.6. No response has been filed by Defendants, Hangtown Body Shop LLC, a Limited Liability Company, Steven Joseph Smith, an individual, and Deva Ann Smith, an individual ("Defendants").

The Parties entered into a Mutual Release Agreement ("Settlement Agreement") on January 15, 2026, which provided Defendants were to render payment of \$14,860.60 to Plaintiff in installments of \$743.03/month effective January 15, 2026, and on the 15th of each month thereafter. The Parties agreed that the Court shall retain jurisdiction over the Parties to enforce the terms of the Settlement Agreement pursuant to Code of Civil Procedure § 664.6 and to retain jurisdiction until final performance.

Plaintiff alleges that Defendants failed to make the payment due on May 15, 2026, leaving a remaining balance of \$11,888.48. Plaintiff seeks the entry of Judgment against Defendants in the amount of \$11,888.48, plus costs in the amount of \$60.00 for having to bring the motion, and attorney's fees in the amount of \$400.00, for a total Judgment in the amount of \$12,348.48 in favor of Plaintiff and against Defendants.

Paragraph 13 instructs that should a party retain counsel due to breach of the Settlement Agreement, the prevailing party shall be entitled to be reimbursed by the losing party for all attorney's fees, costs, and expenses.

TENTATIVE RULING #3:

PLAINTIFF'S REQUEST TO ENFORCE THE SETTLEMENT AGREEMENT AND ENTER JUDGMENT AGAINST DEFENDANTS IS GRANTED. JUDGMENT SHALL BE ENTERED AGAINST DEFENDANTS IN THE AMOUNT OF \$12,348.48, COMPRISED OF THE OUTSTANDING BALANCE (\$11,888.48) AND ATTORNEYS' FEES AND COSTS (\$460.00).

August 14, 2026
Dept. 9
Civil Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.